IT is hereby notified that the Minister of Finance, Economic Development and Investment Promotion has, in terms of section 235, as read with section 120 of the Customs and Excise Act [*Chapter 23:02*], made the following regulations:—

1. These regulations may be cited as the Customs and Excise (General) (Amendment) Regulations, 2023 (No. 116).

2. These regulations shall apply with effect from 1st January, 2024.

3. The Customs and Excise (General) Regulations, 2001, published in Statutory Instrument 154 of 2001 (hereinafter referred to as the "principal regulations"), are amended as follows—

(a) by the repeal of section 144U (*Rebate of Duty on Motor Vehicles Imported by Specified Serving Public Servants*) and the substitution of the following—

"*Rebate of Duty on Motor Vehicles Imported by Specified Serving Public Servants*

144 (U). (1) In this section—

"motor vehicle" means a vehicle aged less than ten years from date of manufacture at the time of importation, admissible under the following Commodity Codes:

8703.21.90 8703.22.90 8703.23.19 8703.23.99 8703.24.90
8703.31.90 8703.32.19 8703.32.99 8703.33.90 8703.40.00
8703.50.00 8703.60.00 8703.70.00 8703.80.00 8703.90.90
8704.21.20 8704.21.30 8704.21.40 8704.21.50 8704.31.20
8704.31.30 8704.31.40 8704.31.50

Provided that—

(a) Commodity code heading 87.02 shall not apply to motor vehicles designed for transport of fifteen or more people, including the driver; and

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(b) Commodity code heading 87.04 shall not apply to motor vehicles whose gross vehicle weight exceed five tonnes.

(c) Commodity codes 8704.21.30, 8704.21.40, 8704.31.30 and 8704.31.40 shall apply only to single cabs.

(2) Subject to this section, a rebate of duty shall be granted in respect of one motor vehicle imported or taken out of bond by a serving public servant of Zimbabwe who is employed in the Civil Service and Service Commissions and who is not a senior civil servant issued with a condition of service motor vehicle and is not under any disciplinary proceedings, if such motor vehicle is—

(a) procured using a loan availed under the Transport Purchase Fund managed through CMED (Private) Limited or the serving public servant's own resources; and

(b) intended solely for the private and business use of the serving public servant and not for commercial or trade purposes.

(3) The Secretary responsible for Finance may, according to his or her discretion and further to the conditions stated herein, approve the importation of a motor vehicle under rebate of duty imported by any serving public servant as follows—

(a) the maximum duty-free import value of any motor vehicle shall not exceed the value(s) stated in subsection (6);

(b) the serving public servant must have been in the Civil Service or Service Commissions for a period of not less than ten years, and

(c) the serving public servant must submit the documents stated in paragraphs (a) to (e) of subsection (7).

(4) In exercising the discretion specified in sub-section (3), the Secretary responsible for Finance may indefinitely disqualify any serving public servant who deliberately submits for approval, an invoice which does not reflect the correct market value of similar vehicles manufactured during the same period.

(5) Only one motor vehicle may be imported by a serving public servant under rebate of duty in terms of this section in any period of five years.

(6) The maximum duty-free import value in respect of which a rebate may be granted to the serving public servants in terms of subsection (3) shall be as follows—

Schedule: Maximum Allowable Thresholds

"Grade of Serving Public Servant (or Equivalent in other Commissions)	**Maximum Amount (US$)**
B and C	2 500
D and E	4 000
Deputy Director	10 000"

(7) No rebate shall be granted in terms of this section unless the serving public servant furnishes with the following documents—

(a) an application letter to be considered as a beneficiary in terms of this section;

(b) recommendation letter from the responsible Permanent Secretary confirming employment as stated in subsections (2) and (3);

(c) a copy of the intended beneficiary serving public servant's driver's licence;

(d) a purchase invoice for the motor vehicle being imported;

(e) approval letter from CMED (Private) Limited for the loan made in terms of subsection (2)(a), in the case of funding from the CMED Transport Purchase Fund.

(8) In consideration of an application for a rebate under this section, the Secretary responsible for Finance may—

(a) only grant a rebate for motor vehicles purchased from traceable and registered car dealers;

(b) request for proof of source of funds where in exercising his or her discretion in terms of subsection (3)(a), direct that the applicant furnish such proof to him or her.

(9) In consideration of an application for a rebate under this section, the Commissioner may—

(a) revalue the motor vehicle in line with the existing customs valuation regulations in cases where he or she suspects undervaluation of the motor vehicle;

(b) disqualify any serving public servant that wilfully undervalues a motor vehicle imported in terms of this section.

(10) No serving public servant to whom a rebate of duty has been granted in terms of this section shall, before expiry of five (5) years from the date of importation of a motor vehicle, sell, offer or display for sale, lease or hire the motor vehicle to any other person in respect of which a rebate of duty on such motor vehicle was granted, without the prior written permission of the Commissioner.

(11) If any serving public servant deals with or disposes of the motor vehicle contrary to subsection (10), they shall be liable to pay to the Commissioner, assessed residual duty including interest on the assessed duty thereof.

(12) The Commissioner may remit the duty on any motor vehicle imported under rebate in terms of this section which is proved to her or his satisfaction to have, as a result of an accident, been damaged beyond economic repair.

(13) Notwithstanding the specified maximum duty-free thresholds specified in this section, the Commissioner shall clear any motor vehicle on which approval would have been granted by the Secretary responsible for Finance before 31st December, 2023, using the duty-free thresholds specified in Statutory Instrument 124 of 2022;

(b) Section 144V (*Rebate of Duty on Motor Vehicles Imported under the Health Service Motor Vehicle Scheme*) of the principal regulations is amended by the repeal thereof and substitution with the following—

"144V (*Rebate of Duty on Motor Vehicles Imported under the Health Service Motor Vehicle Scheme*)

144 (V). (1) In this section—

"motor vehicle" means a vehicle aged less than ten years from date of manufacture at the time of importation, admissible under the following Commodity Codes:

8703.21.90 8703.22.90 8703.23.19 8703.23.99 8703.24.90
8703.31.90 8703.32.19 8703.32.99 8703.33.90 8703.40.00
8703.50.00 8703.60.00 8703.70.00 8703.80.00 8703.90.90
8704.21.20 8704.21.30 8704.21.40 8704.21.50 8704.31.20
8704.31.30 8704.31.40 8704.31.50

Provided that—

(a) Commodity code heading 87.02 shall not apply to motor vehicles designed for transport of fifteen or more people, including the driver; and

(b) Commodity code heading 87.04 shall not apply to motor vehicles whose gross vehicle weight exceed five tonnes;

(c) Commodity codes 8704.21.30, 8704.21.40, 8704.31.30 and 8704.31.40 shall apply only to single cabs.

(2) Subject to this section, a rebate of duty shall be granted in respect of one motor vehicle imported or taken out of bond by a serving public health worker of Zimbabwe who is employed by the Health Service Board and Grant Aided Health Facilities who has served for a period of not less than two (2) years, who is not issued with a condition of service motor vehicle and is not under any disciplinary proceedings, if such motor vehicle is:

(a) procured using a loan availed under the Transport Purchase Fund managed through CMED (Private) Limited or the serving public servant's own resources; and

(b) intended solely for the private and business use of the serving public servant and not for commercial or trade purposes.

(3) Notwithstanding the provisions of subsection (2) the Secretary responsible for Finance, in consultation with the Secretary responsible for Health, may approve the granting of a rebate of duty to Junior Doctors who have been in service for a period of less than two years, subject to submission of documents stated in paragraphs (a) to (e) of sub-section (7).

(4) In exercising the discretion specified in sub-section (3), the Secretary responsible for Finance may indefinitely disqualify any serving public health worker who deliberately submits for approval, an invoice which does not reflect the correct market value of similar vehicles manufactured during the same period.

(5) Only one motor vehicle may be imported by a serving public health worker under rebate of duty in terms of this section in any period of five years.

(6) The maximum import value in respect of which a rebate may be granted to the serving public health worker in terms of subsection (3) shall be as follows—

Table 1: Schedule: Maximum Allowable Thresholds

Grade of Serving Public Health Worker	**Maximum Amount (US$)**
B and C	2 500
D and E	4 000
Deputy Director	10 000
F-Specialist Doctors	15 000

(7) No rebate shall be granted in terms of this section unless the serving public health worker furnishes with the following documents—

(a) an application letter to be considered as a beneficiary in terms of this section;

(b) recommendation letter from the responsible Permanent Secretary confirming employment as stated in subsections (2) and (3);

(c) a copy of the intended beneficiary serving public servant's driver's licence;

(d) a purchase invoice for the motor vehicle being imported;

(e) approval letter from CMED (Private) Limited for the loan made in terms of subsection (2)(a), in the case of funding from the CMED Transport Purchase Fund.

(8) In consideration of an application for a rebate under this section, the Secretary responsible for Finance may—

(a) only grant a rebate for motor vehicles purchased from traceable and registered car dealers;

(b) request for proof of source of funds where in exercising his or her discretion in terms of subsection (3)(a), it is directed that the applicant furnish such proof to him or her;

(9) In consideration of an application for a rebate under this section, the Commissioner may—

(a) revalue the motor vehicle in line with the existing customs valuation

regulations in cases where he or she suspects undervaluation of the motor vehicle;

(b) disqualify any serving public health worker that wilfully undervalues a motor vehicle imported in terms of this section.

(10) No serving public servant to whom a rebate of duty has been granted in terms of this section shall, before expiry of five (5) years from the date of importation of a motor vehicle, sell, offer or display for sale, lease or hire the motor vehicle to any other person in respect of which a rebate of duty on such motor vehicle was granted, without the prior written permission of the Commissioner.

(11) If any serving public health worker deals with or disposes of the motor vehicle contrary to subsection (10), they shall be liable to pay to the Commissioner, assessed residual duty including interest on the assessed duty thereof.

(12) The Commissioner may remit the duty on any motor-vehicle imported under rebate in terms of this section which is proved to her or his satisfaction to have, as a result of an accident, been damaged beyond economic repair.

(13) Notwithstanding the specified maximum duty-free thresholds specified in this section, the Commissioner shall clear any motor vehicle on which approval would have been granted by the Secretary responsible for Finance before 31st December, 2023, using the duty-free thresholds specified in Statutory Instrument 124 of 2022.

(14) Statutory Instrument 124 of 2022 and Statutory Instrument 206 of 2022, shall cease to apply after 31st December 2023.".